

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

SM LINE CORPORATION, *Respondent*.

DOCKET NO. 23-01

Served: December 15, 2023

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

ORDER SETTING STATUS CONFERENCE

On November 17, 2023, Respondent SM Line Corporation filed a renewed motion seeking leave to file a third-party complaint. On November 22, 2023, Complainant Samsung Electronics America, Inc. filed an opposition, arguing that Respondent's motion fails to allege a Shipping Act violation in accordance with 46 C.F.R. § 502.62(b)(4) and fails to meet the standards applied by federal courts in determining whether to allow filing of a third-party complaint under FRCP 14.

The parties are **ORDERED** to appear for a status conference on **December 20, 2023 at 11:30 am EST** to discuss the motion. The parties will receive a Teams meeting link to participate in the conference. The parties should be prepared to discuss the specific acts alleged in the lodged third-party complaint to be Shipping Act violations, as well as the point in the litigation when Complainant became aware of the third-party respondents' involvement in the claims.

Alex Michael
Chintella

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Michael Chintella
Date: 2023.12.15 11:35:03
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Alex M. Chintella
Administrative Law Judge